

OREGON STATE HOSPITAL

POLICY

SECTION 6: Patient Care **POLICY: 6.032**

SUBJECT: Marriage Requests

POINT PERSON: Director of Spiritual Care

APPROVED: Sara Walker, MD

DATE: JULY 31, 2024


Interim Superintendent

SELECT ONE: ☐ New policy ☒ Minor/technical revision of existing policy
☐ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. Oregon State Hospital (OSH) recognizes that a patient may request to be married while residing at OSH. OSH also recognizes that, before an OSH patient gets married, OSH must verify that the patient has the capacity to make an informed decision about getting married and that the unusual nature of the environment does not unduly influence the patient's choice. OSH will comply with Oregon laws regarding marriage.
- B. This policy applies to all staff who work with clients seeking to be married while at OSH.

II. POLICY

- A. The interdisciplinary treatment team (IDT) is responsible to determine whether the patient has the capacity to make an informed decision to be married. This may include clinical recommendations, but those should be distinguished clearly from the assessment regarding capacity to make an informed decision about marriage.
- B. Staff should refrain from giving their personal opinions to the patient separate from the IDT's official position
- C. The applicant, whether indigent or not, accepts responsibility for all fees incurred related to the marriage process, such as marriage license fees rings, and ceremony expenses. No government funds may be used for private parties.
- D. Spiritual Care Department Staff, including contractors, may not conduct marriage

ceremonies at OSH.

- E. If one or both patients does/do not have off-ground privileges or if the couple chooses to get married at OSH, the ceremony must be performed by an authorized marriage official selected by the patient(s) that has completed the OSH Adult Visitor Application and screening process per OSH policy 8.026 "Visitors to Patients."

NOTE: The location of the ceremony determines the maximum number of guests. The guest number includes two witnesses and does not include the authorized marriage official who performs the ceremony. All guests and the authorized marriage official performing the ceremony must follow the visitor clearance process as indicated in OSH Policy and Procedure 8.026, "Visitors to Patients."

- F. OSH Spiritual care staff are not able to obtain a marriage license on behalf of patients, see procedures A for requirements.
- G. A patient request to be married must adhere to Procedures A.
- H. Any celebratory food must be paid for with patient or visitor funds only. Celebratory food and beverages must be purchased through OSH Food and Nutrition Services.
- I. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- J. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Authorized marriage official" for the purposes of this policy means a person who is a marriage official who has a license to officiate a marriage at the Oregon State Hospital, and who has been cleared by Security. In this policy, the term "authorized marriage official" does not include Spiritual Department STAFF or contractors.
- B. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. PROCEDURE

Procedures A Marriage Request Process

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V. ATTACHMENT

Attachment A Marriage Acknowledgement

VI. RELATED OSH POLICIES AND PROTOCOLS

6.006 On-Grounds Off-Grounds Movement

6.024 Transportation and Supervision ratios

8.026 Visitors to patients